

CHAPTER 54.

An Act to amend the Law with respect to the Sale and Use of Seeds for sowing and of Seed Potatoes and to provide for the testing thereof. [16th August 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Delivery of particulars on sale of seeds and seed potatoes.

1.—(1) Every person who sells any seeds to which this Act applies or any seed potatoes, shall, on or before the sale, or if the goods are not delivered at the time of sale on or before delivery thereof, deliver to the purchaser a statement in writing containing the prescribed particulars with respect, in the case of seeds, to their variety, purity and germination, and in the case of seed potatoes, to their class, variety, size and dressing, and, in either case, to any other prescribed matters.

(2) Every person who exposes for sale any seeds to which this Act applies, or any seed potatoes, shall cause to be displayed conspicuously on or in close proximity to the seeds or potatoes, as the case may be, a statement in writing containing such particulars as are required to be contained in the statement to be delivered under this section to a purchaser.

(3) The statement required to be delivered under this section to a purchaser shall be contained in a sale note or invoice or be attached to, inserted in, or written on, the package containing the seeds, or seed potatoes, as the case may be.

(4) For the purposes of this section, a statement in writing referring specifically to a printed price list or printed catalogue containing the prescribed particulars shall be deemed to contain those particulars.

(5) The particulars to be contained in a statement to be delivered under this section to a purchaser of seeds shall, so far as they are particulars relating to the purity and germination of the seeds, be particulars ascertained on a test of those seeds made in accordance with the provisions of this Act.

(6) Every statement relating to seeds which is delivered or displayed under this section must specify that the seeds have been tested in accordance with the provisions of this Act.

(7) The Minister may, by licence granted subject to and in accordance with regulations made under this Act, exempt any

person as respects any sale or any exposure for sale of seeds or seed potatoes from compliance with the requirements of this section, and any such exemption may be granted either absolutely or subject to compliance with any conditions specified in the licence.

2.—(1) A test of seeds for the purpose of the preceding section shall, in the case of seeds other than garden seeds, be made either at one of the official seed testing stations established under this Act or at some testing station licensed by the Minister, and, in the case of garden seeds, be made either as aforesaid or in any other sufficient manner. Provisions as to tests.

(2) Where seeds are sold or delivered or exposed for sale at any time other than some time within the months of August or September, a test for the purpose of the preceding section shall be a test made not earlier than the first day of the month of August last preceding, and, where seeds are sold and delivered or exposed for sale at any time within the months of August or September, the test shall be a test made not earlier than the first day of the month of August in the previous year.

3. It shall not be lawful for any person to sell or expose for sale or knowingly to sow any seeds, being seeds to which this Act applies, which contain more than the prescribed percentage of the seeds of any prescribed injurious weeds. Prohibition of sale or use of seeds containing injurious weed seeds.

4.—(1) Any person, whether an officer of the Ministry or not, duly authorised by the Minister in that behalf may, upon production if so required of his authority, at all reasonable hours, enter any premises where seeds to which this Act applies or seed potatoes are sold or exposed for sale or stored for purposes of sale without further recleaning, blending, or grading, and may without payment take samples of the seeds or seed potatoes for testing, and the owner thereof shall on demand deliver to the person taking the samples a statement containing such particulars with respect thereto as are required to be contained in the statement to be delivered upon a sale of seeds or seed potatoes, as the case may be, under this Act. Power to enter and take samples.

(2) A person taking a sample of seeds under this section shall divide the sample into two parts and shall cause each part to be marked, sealed, and fastened up, and shall deliver or tender one part to the owner of the seeds and shall deliver or send by post to the chief officer of the official testing station the other part of the sample for the purpose of its being there tested.

(3) A certificate in the prescribed form of the result of any test of a sample sent to the official testing station under this section shall be issued in the prescribed manner, and a copy of

every certificate so issued shall, as soon as it has been issued, be sent to the owner of the seeds.

(4) Every certificate issued as aforesaid shall, in any proceedings against the owner of the seeds, be conclusive evidence of the facts stated in the certificate unless the owner within fourteen days from the date on which the copy is received by him gives notice in writing to the chief officer at the official testing station requiring that further portions of the sample should be tested both at that testing station and at some other official testing station.

(5) Where any seeds of which a sample has been tested under this section were purchased by the owner thereof from any other person, and it appears to the Minister from the certificate of the result of the test that the seeds in some material respect fail to correspond with the particulars contained in the statement delivered to the owner under this Act on the sale to him of the seeds, the owner shall, on application in writing made to him in that behalf by the Minister at any time after the test has been completed, furnish to the Minister the name and address of the person from whom he purchased the seeds, together with a copy of the statement so delivered, and the Minister shall, on being furnished with the said name and address, cause to be sent to the seller in a sealed packet a part of the sample of the seeds, together with a copy of the certificate, and the certificate shall, in any proceedings against the seller, be conclusive evidence of the facts stated in the certificate :

Provided that, where the sample has not been tested at two official testing stations, the seller shall have the same right as the owner to require that further portions of the sample shall be so tested.

(6) Where further portions of a sample are tested in pursuance of the foregoing provisions of this section and the certificates issued by the two official testing stations differ, the average of the results of the two tests shall be deemed the result of the test within the meaning of this Act, and a certificate by the Minister as to the average of the results of the two tests shall be conclusive evidence of the facts stated in the certificate.

Exemptions.

5.—This Act shall not apply—

- (a) to a sale of seeds to a person purporting to purchase them with a view to cleaning them before they are sold or exposed for sale; or
- (b) to a sale of seeds where the purchaser at the time of the sale gives to the seller an undertaking in writing that he will before selling or exposing the seeds for sale test or cause them to be tested, or that he will

not resell the seeds to a seed merchant except on a similar undertaking by the purchaser; or

- (c) to a sale of seeds or seed potatoes for delivery outside the United Kingdom; or
- (d) to a sale or exposure for sale of seeds or seed potatoes not to be used for sowing or planting.

6.—(1) For the purpose of any legal proceedings on a contract for the sale of seeds, being a sale to which this Act applies, the particulars contained in the statement delivered in pursuance of this Act on the sale shall be deemed to be true unless it is made to appear on a test made subject to the provisions of this section that the particulars were untrue and, in the case of particulars relating to purity or germination, that the actual percentage of purity or germination differs from the percentage appearing in the particulars by more than the prescribed limit of variation.

Presumption
of correct-
ness of
statement
for purposes
of civil
proceedings.

(2) If the purchaser of any seeds desires that a test thereof should be made for the purposes of this section, he may, at any time within ten days of the date of the delivery thereof to him, take a sample thereof at the place at which the seeds were delivered, whether his own premises or elsewhere, and shall divide the sample so taken into two parts, of which one part shall be sent to the chief officer of the official testing station for the purpose of being there tested, and the other part shall be delivered or tendered to the seller.

7.—(1) The Minister may, after consultation with representatives of the interests concerned (and, as respects forest tree seeds, after consultation also with the Forestry Commissioners), make regulations generally for the purpose of carrying this Act into effect and in particular and without prejudice to the generality of the foregoing provisions for prescribing—

Regulations.

- (a) the seeds, whether agricultural, vegetable or forest tree, to which this Act is to apply;
- (b) the manner in which samples are to be taken and dealt with;
- (c) any matter which under this Act is to be prescribed.

(2) Every regulation made under this Act shall be laid before each House of Parliament forthwith, and, if an address is presented to His Majesty by either House of Parliament within the next subsequent thirty days on which that House has sat next after any such regulation is laid before it praying that the regulation may be annulled, it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder.

Penalties.

8.—(1) If any person—

- (a) fails to comply with or acts in contravention of any provision of this Act or any undertaking given by him under this Act or any condition attached to any exemption granted under this Act; or
- (b) makes or causes to be made any statement required to be delivered or displayed under this Act which is false in any material particular;

he shall, without prejudice to any civil liability, be liable on summary conviction to a fine not exceeding in the case of a first offence five pounds, and in the case of a second or subsequent offence ten pounds.

(2) A person shall not be liable to be convicted on a charge of making or causing to be made a statement which is false in any material particular, if he proves that the particulars alleged to be false were particulars ascertained on a test made in accordance with the provisions of this Act of a sample of the seeds with respect to which the statement was made, or in a case where the particulars alleged to be false are particulars relating to the purity or germination of the seeds, that the actual percentage of purity or germination does not differ from the percentage specified in the statement by more than the prescribed limit of variation.

Penalties for obstruction.

9. If any person obstructs or impedes in the execution of his duties under this Act any person authorised to enter any premises for the purposes of this Act, he shall be liable on summary conviction to a fine not exceeding in the case of a first offence five pounds, and in the case of a second or subsequent offence ten pounds.

Penalty for tampering.

10. If any person—

- (a) tampers with any seeds or seed potatoes so as to procure that any sample taken under this Act does not correctly represent the bulk of the seeds or seed potatoes; or
- (b) otherwise tampers with any sample taken under this Act; or
- (c) with intent to deceive sends or causes or allows to be sent to any testing station or person, to be tested, for the purpose of this Act, a sample of seeds which to his knowledge does not correctly represent the bulk of the seeds;

he shall be liable on summary conviction to a fine not exceeding twenty pounds or to imprisonment for a term not exceeding six months.

11.—(1) Proceedings for an offence under this Act shall be instituted only by the Minister. Legal proceedings.

(2) For the purpose of any proceedings for an offence under this Act, the offence may be treated as having been committed either at the place at which it was actually committed or at the place in which the person charged with the offence is for the time being resident, and every court of summary jurisdiction shall have power to hear and determine proceedings for any such offence accordingly.

12.—(1) Subject to the provisions of this section, the Minister, the Board of Agriculture for Scotland, and the Department of Agriculture and Technical Instruction for Ireland (in this section referred to as “the Agricultural Departments”) shall, either alone or in conjunction with any other bodies or persons, establish and maintain official seed testing stations for England and Wales, Scotland, and Ireland respectively : Establishment of official seed testing stations.

Provided that the Agricultural Departments or the Agricultural Departments for any two parts of the United Kingdom may, if they think fit, unite in establishing and maintaining, on such terms as may be agreed between them, a common official seed testing station for the whole of the United Kingdom or for those two parts, as the case may be, and in the event of a common official testing station being established for the whole of the United Kingdom this Act shall have effect as though the provisions thereof enabling a person to require a further test at a second official testing station were omitted therefrom.

(2) In this Act the expression “the official testing station” means as respects any part of the United Kingdom the official seed testing station established and maintained for that part of the United Kingdom, whether alone or in common with some other part or the other parts of the United Kingdom.

13. Any expenses incurred by the Minister, the Board of Agriculture for Scotland, or the Department of Agriculture and Technical Instruction for Ireland, in carrying this Act into execution shall, up to an amount approved by the Treasury, be defrayed out of moneys provided by Parliament. Expenses.

14. In this Act, unless the context otherwise requires— Interpretation.
The expression “the Minister” means the Minister of Agriculture and Fisheries, and the expression “the Ministry” means the Ministry of Agriculture and Fisheries;

The expression “owner” in relation to seeds or seed potatoes includes any person having possession thereof.

Application
to Scotland.

15. This Act in its application to Scotland shall have effect subject to the following modifications :—

- (a) References to “ the Minister ” and “ the Ministry ” shall, unless the context otherwise requires, be construed as references to the Board of Agriculture for Scotland :
- (b) Proceedings for an offence under this Act may be instituted either by the Board of Agriculture for Scotland or by the Procurator-Fiscal.

Application
to Ireland.

16. This Act in its application to Ireland shall have effect subject to the following modifications :—

- (a) The provisions of this Act relating to the exposure for sale of seeds and seed potatoes (other than provisions prohibiting the exposure for sale of seeds containing more than the prescribed percentage of the seeds of any prescribed injurious weeds), shall not apply :
- (b) The provisions of this Act relating to the sale of seeds and seed potatoes (other than provisions prohibiting the sale of seeds containing more than the prescribed percentage of the seeds of any prescribed injurious weeds), shall not apply as respects any sale which is completed by the acceptance in Ireland of an offer made in Ireland :
Provided that an offer made or accepted in Ireland by a person acting as agent for a disclosed principal in Great Britain shall not be treated for the purposes of this provision as an offer made or accepted in Ireland :
- (c) The provisions of this Act relating to the sowing of seeds containing more than the prescribed percentage of the seeds of any prescribed injurious weed shall not apply :
- (d) References to “ the Minister ” and “ the Ministry ” shall, unless the context otherwise requires, be construed as references to the Department of Agriculture and Technical Instruction for Ireland.

Short title
and com-
mencement.

17.—(1) This Act may be cited as the Seeds Act, 1920.

(2) This Act shall come into operation on the first day of August, nineteen hundred and twenty-one.
